

	2023-01367289	
8	Lawson v. Executive Maintenance, Inc., et al. 2019-01107756	<u>Plaintiff David Lawson’s Motion to Enforce Order and for Sanctions</u> Plaintiff David Lawson moves for an order compelling defendant Executive Maintenance, Inc. (EMI) to comply with the court’s October 16, 2024 order (ROA 65) directing EMI to produce the Class Members’ Data (as defined in plaintiff’s Statement Regarding Class Notice filed October 7, 20204 (ROA 637) to Class Counsel within 30 days of the court’s issuance of the October 16, 2024 order. For the following reasons, plaintiff’s motion is granted in part and denied in part. Civil Procedure Code section 128(a)(4) states: “Every court shall have the power to do all of the following: . . . (4) To compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein.” Civ. Proc. Code § 128(a)(4). On October 16, 2024 the court ordered the parties to provide notice to the class members “in substantially the same manner as proposed in Plaintiff’s Statement Regarding Class Notice (ROA 637).” 10/16/24 Order (ROA 650). Paragraph 1 of plaintiff’s Statement Regarding Class Notice states: “Production of Class Members’ Data. Within thirty (30) days of the Court’s Order approving the content and dissemination of class notice, Defendant Executive Maintenance, Inc. (‘Defendant’) shall provide to Class Counsel the Class Members’ Data subject to the provisions of the Protective Order.” ROA 637 at ¶ 1 (bold in original). “Class Members’ Data” is defined in the same paragraph. <i>Id.</i> As of November 20, 2024, when plaintiff filed the instant motion, EMI had not provided Class Counsel with the Class Members’ Data nor has EMI’s counsel responded to plaintiff’s counsel’s inquiry regarding the status of production. Schubert Decl. (ROA 692) ¶¶ 12-13 & Ex. 2. EMI did not file an opposition to the motion and thus has not provided any explanation for its failure to provide Class Counsel with the Class Members’ Data. EMI is ordered to comply with the court’s October 16, 2024 order by providing the Class Members’ Data to Class Counsel by <u>April 24, 2025</u>. Plaintiff seeks sanctions pursuant to Civil Procedure Code section 177.5, which states: “A judicial officer shall have the power to impose reasonable money sanctions, not to exceed fifteen hundred dollars (\$1,500), notwithstanding any other provision of law, payable to the court, for any violation of a lawful court order by a person, done without good cause or substantial justification. This power shall not apply to advocacy of counsel before the

		court. For the purposes of this section, the term 'person' includes a witness, a party, a party's attorney, or both. "Sanctions pursuant to this section shall not be imposed except on notice contained in a party's moving or responding papers; or on the court's own motion, after notice and opportunity to be heard. An order imposing sanctions shall be in writing and shall recite in detail the conduct or circumstances justifying the order." Civ. Proc. Code § 177.5. As stated above, EMI has not provided any justification for its failure to comply with the court's October 16, 2024 order that it produce the Class Members' Data to Class Counsel within 30 days of the order, much less good cause or substantial justification. EMI therefore is ordered to pay sanctions in the amount of \$1,500.00 to the court pursuant to section 177.5 by May 15, 2025. Plaintiff's requests for sanctions pursuant to Civil Procedure Code section 575.2 and California Rule of Court 2.30 are denied, as plaintiff has not demonstrated that either section 575.2 or rule 2.30 applies here. Plaintiff's requests for an order permitting plaintiff to inspect EMI's records to obtain the Class Members' Data and for issuance of Orders to Show Cause re Contempt ordering defendants Patricia May, William May and David Moltz to personally appear are denied. Plaintiff to give notice.
9	Mora v. Diamond ZB Staffing Services, LLC, et al. 2019-01104920	<u>Plaintiff Marisela Mora's Motion to Compel Deposition</u> Plaintiff Marisela Mora moves to compel defendant Veronica G. Lake to appear for a fourth deposition. For the following reasons, plaintiff's motion is denied. Civil Procedure Code section 2025.610 states, in relevant part: "(a) Once any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent. "(b) Notwithstanding subdivision (a), for good cause shown, the court may grant leave to take a subsequent deposition, and the parties, with the consent of any deponent who is not a party, may stipulate that a subsequent deposition be taken." Plaintiff named Lake as Doe 1 on August 2, 2023 (ROA 413), and served Lake with the summons and first amended complaint by substituted service on August 10, 2023 (ROA 431). Lake appeared in the action on October 13, 2023 when she filed a demurrer to the first amended complaint. ROA 552.